

LETHAL REVELRY

- At least 25 persons have lost their lives just this year in instances of celebratory firing in Bihar
- The state government last year admitted in court that such cases had been reported in at least 25 out of 38 districts
- The Arms Act prohibits "celebratory gunfire" at public gatherings like marriage parties
- The offence is punishable with up to two-year jail, or with a fine that may extend to Rs 1 lakh
- The Patna High Court in February this year ordered the state to publicise "the prohibition and penal consequences of celebratory firing"

CELEBRATORY FIRING AS AN OSTENTATIOUS ACT MATCHES, IN SPIRIT, THE POMPOUS PROFLIGACY ONE SEES AT MARRIAGES. EXCEPT THAT IT CAN KILL

Illustration by **TANMOY CHAKRABORTY**

be part of basic vocabulary. And what's the point of a gun if you don't show it's for real? And so, celebratory firing as an ostentatious act matches, in spirit, the pompous profligacy one sees at marriages. Except that it can kill.

The law itself is quite clear. The Arms (Amendment) Act, 2019, prohibits "celebratory gunfire" at public gatherings, religious places, marriage parties and suchlike. Any transgression is punishable with an imprisonment up to two years, or with a fine that may extend to Rs 1 lakh. But the Bihar police is strikingly lax in enforcing this—cops are usually only seen in the bloody aftermath. Forget about crafting any campaign or proactive drive against this practice.

The Patna High Court, on the other hand, has been alive to the issue. While disposing of a public interest litigation on February 27 this year, a division bench of Justice Chakradhari Sharan Singh and Justice Madhuresh Prasad had ordered the state to publicise "the prohibition and penal consequences of celebratory firing". District magistrates and superintendents of police were directed "to develop a system of immediate reporting of incidents of celebratory gun firing and instantaneous institution of criminal cases".

The court order also made it incumbent upon gun licensing authorities to act in accordance with the Arms Act and suspend/revoke the licence of any offender. That, of course, applies only when the gun has been legally acquired. A lot of those gunshots ring out from unlicensed weapons. Which should be no deterrent to police action—if anything, it calls for more vigilance, not less. But the blasé, *chalta hai* attitude of the police is part of the enabling atmosphere where Bihar's revellers fire away with impunity.

In a counter-affidavit submitted in the high court last June, the state government too admitted it was assuming the proportions of a serious problem. Cases of deaths/injuries from celebratory firing had been reported in at least 25 out of 38 districts in Bihar. A list of 66 such cases was submitted in court. That nothing has come of all this hand-wringing, says Patna lawyer K.D. Mishra, is a clear case of abdication of duty—"the local administration is squarely responsible. So are the police." If DGP Rajwinder Singh Bhatti, who took over in December 2022, had initially generated hope with his reputation, those who expected a sea-change in policing in Bihar are certainly sorely disappointed on this front.

Dr Renu Choudhary, who teaches sociology at Patliputra University, describes such firing as an expression of a feudalistic mindset that sees firearms as a symbol of power. "It leaves behind a trail of broken families, but it continues because there is no firm punitive action," she says. Bihar's society is in a churn. Empowerment politics has disturbed the old feudal order in positive ways. But via the emulation of old tropes of violence, it can also go in an unpredictable direction—like a stray bullet. ■